

1 ENGROSSED SENATE
2 BILL NO. 1287

By: Alvord of the Senate

3 and

4 Crosswhite Hader of the
5 House

6 An Act relating to the Oklahoma Abstractors Act;
7 amending 1 O.S. 2021, Section 38, which relates to
8 qualifications for issuance of license; allowing the
9 Oklahoma Abstractors Board to deny certain applicant;
10 updating statutory language; and providing an
11 effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 1 O.S. 2021, Section 38, is
14 amended to read as follows:

15 Section 38. A. An abstract license shall be issued by the
16 Oklahoma Abstractors Board to an applicant who:

- 17 1. Is eighteen (18) years of age or older;
- 18 2. Is of good moral character;
- 19 3. Has not been convicted of or pleaded guilty or nolo
20 contendere to a felony or crime of moral turpitude or disqualifying
21 offense that substantially relates to the practice of abstracting or
22 poses a reasonable threat to public safety in this state, another
23 state, or a federal court; and
- 24 4. Has passed a test for abstractors required by the Board.

1 B. The Board shall deny an abstract license to an applicant who
2 does not have legal authorization to work, is not residing in, or is
3 not physically present in the United States of America.

4 C. Each abstract license shall be valid for one (1) year. The
5 Board shall set the fees for an abstract license and for renewal not
6 to exceed One Hundred Fifty Dollars (\$150.00).

7 ~~C.~~ D. As used in this section:

8 1. "Poses a reasonable threat" means the nature of criminal
9 conduct for which the ~~person~~ applicant was convicted involved an act
10 or threat of harm against another and has a bearing on the fitness
11 or ability to serve the public or work with others in the
12 occupation; and

13 2. "Substantially relates" means the nature of criminal conduct
14 for which the ~~person~~ applicant was convicted has a direct bearing on
15 the fitness or ability to perform one or more of the duties or
16 responsibilities necessarily related to the occupation.

17 SECTION 2. This act shall become effective November 1, 2026.
18
19
20
21
22
23
24

1 Passed the Senate the 16th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives